No. 24-CA-557

COURT OF APPEAL FOR THE FIFTH CIRCUIT STATE OF LOUISIANA

BEVERLY ALEXANDER, et al.
Plaintiffs-Appellants

v.

ST. JAMES PARISH,
Defendant-Appellee

ON APPEAL FROM DECISION OF THE TWENTY-THIRD JUDICIAL DISTRICT COURT, PARISH OF ST. JAMES, HONORABLE CODY MARTIN, DISTRICT JUDGE, DIVISION B, NO. 41903

PLAINTIFFS-APPELLANTS' ORIGINAL BRIEF

A CIVIL PROCEEDING

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STATEMENT OF JURISDICTION

Petitioners-Appellants appeal the final judgment of the Twenty-Third Judicial District Court dated June 18, 2024. Petitioners-Appellants timely filed a motion for devolutive appeal on August 19, 2024. The district court granted the motion on August 22, 2024. Thus, this Honorable Court has jurisdiction over the matter pursuant to La. Const. art. V § (10)(A) and La. C.C.P. art. 2083(A).

STATEMENT OF THE CASE

This case is about the St. James Parish Planning Commission's failure to follow the plain language of the Parish's land use ordinance in approving an application for expansion of a methanol production facility that included construction of a pipeline and access road in wetlands ("the Project").

Appellee St. James Parish ("the Parish"), and Appellee Koch Methanol—which sought the approval—do not, and cannot, dispute that the Parish is bound by its own ordinance governing how it must approve or deny certain projects. Rather, Appellees urged an interpretation of the Parish's ordinance that ignores its plain language and purpose *and* creates an absurd result. Specifically, the St. James Parish Planning Commission's ("Planning Commission's" or "Commission's") view that the land use ordinance allows construction of a pipeline in wetlands without the stricter form of review that the ordinance requires for incompatible uses ignores the provision's explicit instruction that wetlands "should remain unoccupied."[1] Appellees' interpretation disregards the purpose of the ordinance and results in a reading of the statute that is the opposite of what it says; that is, the result of their

[1] St. James Parish Land Use Ordinance, Art. II, § 82-25(c).

interpretation is that construction in wetlands can be approved with more ease and less scrutiny than construction in other less-sensitive and less-protected land use categories.

This first-order error by the Commission led to and was compounded by a second fundamental error in the Parish's review of the Project: *no parish body* made the mandatory findings the ordinance requires. That is to say that even accepting Appellees' argument that the Planning Commission had authority to approve a land use application involving construction in wetlands rather than make a recommendation to the Parish Council (as would be required by the ordinance), the Parish Council then conducted a standardless review of the application on "appeal." Instead of weighing the application, which included new evidence submitted by both Koch and Petitioners, under standards dictated by the ordinance, the Council merely denied Petitioners' appeal and affirmed the Commission's decision, which was *ultra vires* to begin with. Appellees claim that the ordinance permits a structureless, standardless form of review that Louisiana law forbids.

Perhaps the best argument against the Parish's interpretation comes from the Parish itself in its review of land use applications subsequent to this litigation. As shown further below, the Planning Commission has since explicitly acknowledged that it "only has the authority to recommend action, and the final decision rests with the parish council" when reviewing recent project proposals requiring construction of pipelines in non-allowable areas, "including in Wetlands."[2]

The district court erred in holding that the Parish did not need to apply the ordinance's more stringent review to the Project. Should the ruling stand, the Parish

[2] *See*, *infra* n. 10, July 29, 2024, Minutes of Planning Commission meeting.

will be allowed to skirt the review process outlined in the ordinance, which exists to ensure that the Parish weighs whether certain projects will sufficiently benefit and not harm their community. This ruling contravenes the clear language of the ordinance and ignores the reason the ordinance requires the Parish to make these findings – as even the Parish now acknowledges.

ASSIGNMENT OF ERRORS

The district court erred when it held that the Planning Commission did not need to follow § 82-25(e) of St. James Parish's Land Use Ordinance. The district court additionally erred by not holding the Parish Council's decision to be arbitrary and capricious and in violation of the Constitution due to its failure to apply any standard to its review of Koch's land use application on appeal.

ISSUES FOR REVIEW

1. § 82-25(e) of the St. James Parish land use ordinance provides clear instructions that the Planning Commission and Parish Council ("Council") must adhere to when approving non-allowable uses. Pipelines are not "specifically listed as allowable" uses in Wetlands. Did the Parish violate its ordinance when it approved the Koch Project—including its pipeline and access road in wetlands—without following the mandated Tier 3/section (e) procedures, including making affirmative findings?
2. Given the clear and unambiguous language in §§ 82-25(c) and (e) that a pipeline is not a use "specifically listed as allowable" in areas designated as Wetlands, should the court have considered the Parish's legislative intent in writing the ordinance? And even if the court should have, does any evidence support the

court's position that the Parish did not want all Wetlands projects to undergo Tier 3/section (e) review?

3. The language of the ordinance demonstrates an intent to protect the wetlands from unnecessary intrusion, stating that they "should remain unoccupied, except for unique situations requiring a location in the water." Considering this, should the court have held that it would constitute an absurd result for the Planning Commission and Council to review all proposed projects in wetlands under (e)?
4. The Parish Council on appeal applied no standard to Koch's land use application, despite the ordinance providing a standard in § 82-25(h). Did the court err in failing to find that the Council's standardless review of Petitioners' appeal violated the ordinance and Louisiana Constitution?

FACTUAL BACKGROUND

Petitioners include a resident of St. James Parish, two faith-based community organizations that advocate for a healthier environment in the Parish, and a church located in the Parish. Koch Methanol St. James, LLC is a methanol production facility located in St. James Parish's Fifth District on the west bank of the Mississippi River. R. 176. The facility has been operating since 2015. R. 155.

I. The Proposed Project and its Impacts

On July 12, 2023, Koch applied for a Land Use Permit with the St. James Parish Planning Commission to expand its production facility ("Facility") and install a pipeline and access road through wetlands. R. 176-217. The Project would increase the refined methanol production of the Facility by 25%, but would increase the Facility's allowable pollution into the air by 75%. R. 79, 187, 269. This includes almost doubling the permitted emissions of both volatile organic

compounds (VOCs) and carbon monoxide, to 166.34 and 181.46 tons per year, respectively; and an over 50% increase in permitted particulate matter and nitrogen dioxide emissions, to approximately 75 and 152.84 tons per year, respectively. R. 269, 356-57. While part of the expansion involves construction within the Facility's current footprint in an Industrial land use area, the expansion also requires the construction of a pipeline and a corresponding access road for the transportation of highly flammable ethane gas *outside* the current footprint into a Wetlands land use area. R. 182-183.

The Project would have permanent impacts on the local environment, exacerbating the already high levels of air pollutants to which the community is exposed and compromising their flood protection by filling and industrializing more wetlands. R. 250-53. As Koch acknowledged in application documents submitted to the Louisiana Department of Environmental Quality (DEQ), the Project will convert the Facility into a major source of air pollution under the Prevention of Significant Deterioration (PSD) program of the Clean Air Act. R. 418. This means that the emission limit increases Koch seeks will permit its Facility to annually emit over 100 tons of nitrogen oxides, carbon monoxides, and volatile organic compounds. R. 236. This expansion, combined with other industrial developments in the area, would push the Parish closer to violating a federal standard for ambient concentrations of nitrogen dioxide (NO2) under the National Ambient Air Quality Standards ("NAAQS") program. R. 237.

In addition to the Project's potential health impacts on Fifth District residents at the current footprint, the Project's pipeline construction element, which includes an access road, would have physical impacts on areas not intended for industrial

development; namely, the wetlands. Wetlands are a critical resource to Louisiana's coastal zone—they play an essential role in protecting communities from flooding and storm water. R. 156. In an area that frequently faces hurricane risk, they are especially critical to ensuring resiliency and safety for residents and industrial facilities alike. *Id.* Furthermore, this pipeline will transport highly flammable ethane gas, and, like all pipelines, the pipeline itself has the potential to burst and pollute this sensitive area. R. 583.

Appellants—organizations with members living in St. James Parish, including in the 5th District, and Beverly Alexander, an individual who has lived in the 5th District her whole life—are most at risk from this industrial expansion.

II. The St. James Parish Land Use Regime

The St. James Parish land use plan ("Plan" or "Ordinance") includes, in subsection (c), a table listing land use categories and the accompanying allowable uses for those categories. Ord. Art. II, § 82-25(c).[3] Among the listed land use categories are Residential, Commercial, Industrial, and Wetlands. *Id.* Next to each of these categories are specifically listed "allowable uses," with the exception of the Wetlands and Water categories, which are "shown for information only." *Id.* These two categories include the instruction that they "should remain unoccupied except for unique situations requiring a location in the water." *Id.*

Following this table, the Plan outlines three types of review of land use applications. They can be understood as Tier 1, Tier 2, and Tier 3, in order of

[3]This Court may take judicial notice of the contents of the land use ordinance under La. Code Evid. art. 202(c). *See* St. James Parish Land Use Ordinance, Art. II § 82-25, available at https://library.municode.com/la/st._james_parish_council/codes/code_of_ordinances?nodeId=PTIICOOR_CH82PL.

stringency of review.[4] Tier 1 is the least restrictive level of review and is not relevant to this appeal.[5] Tier 2, under subsection (f), applies to a category of uses that are specifically listed as allowable in an area under subsection (c) but which, due to their larger size and/or environmental impacts, must undergo additional review. *Id.* at (f). Under the Plan, the Planning Commission may grant these land use approvals, but if the Commission's approval is appealed, the Parish Council must approve the land use. The Planning Commission, or the Parish Council on appeal, are required to consider the factors and follow certain procedures outlined in subsection (g), (h), and (i). *Id.*; *id.* at (g), (h), (i).

Tier 3, under subsection (e), is the most stringent level of review for land use applications and applies to all uses "not specifically listed as allowable in a use category in subsection (c)" of the Plan. *Id.* at (e) (emphasis added). Such uses "are prohibited unless the Planning Commission considers the use in accordance with subsections (g), (h) and (i), and the parish council approves the use." *Id.* Thus, under this tier, the Commission can only consider the use and provide a recommendation to the Parish Council; the Council has the sole authority to approve or deny the land use application. *Id.* Further, the Plan mandates that before the Commission can recommend or the Council can approve such a nonallowable use, they must make "affirmative findings that there is a compelling public benefit, that the use

[4]This terminology is not in the Land Use Plan but was used by the Parish before the district court. For clarifying purposes, Appellants adopt that same terminology.

[5]Tier 1, under subsection (d), applies to certain uses listed as allowable in an area under subsection (c) of the ordinance. § 82-25(d). Tier 1 review is done through regular building permitting processes and not through the Commission or the Council.

is compatible with surrounding uses[,] and that adverse impacts of the use are inconsequential . . . .” Ord. Art. II, § 82-25(e).

The procedures and considerations in subsections (g) and (h), which the Plan makes applicable to both Tier 2 (subsection f) and Tier 3 (subsection e) uses, encompass application and public notice requirements (subsection (g)), as well as factors that the Parish must consider for approval or denial (subsection (h)), including public benefits and impacts to the environment. *Id.* at (g), (h).

III. The Commission’s Decision and Appellants’ Challenge

The Commission classified the Koch application as a Tier 2 project, treating both the portion in the Industrial zone and the pipeline/access road portion as allowable uses. Specifically, the Commission found that the pipeline was a “unique situation requiring a location in water,” then asserted that this made it an “allowable land use in the Wetlands.” R. 248.[6] It approved the application on July 31, 2023, without making the affirmative findings required for nonallowable uses. R. 218-249.

On August 30, 2023, Appellants appealed the Commission’s decision to the St. James Parish Council, asserting that the Planning Commission had used the improper procedure for reviewing the application and providing evidence of omissions in Koch’s application, as well as environmental impacts, insufficient benefits, and improper industrial development in Wetlands. R. 250-273.

On September 22, 2023, Koch submitted a new application to the Council with updated information and additional documents. R. 366-546. The Council held

[6]The Commission supported this decision with a summary statement that there was an existing ethane pipeline in wetlands to which the new pipeline would connect. R. 248.

a public hearing on September 27, 2023, where both Petitioners-Appellants and Koch presented arguments. R. 565. Public comment followed, including residents who raised the real and potential adverse health and environmental impacts of the Project, while Koch employees spoke in support of the application. R. 701-714. The Council voted to reject Petitioners' appeal. R. 743. The subsequently published minutes from the meeting reflect that the Council made no findings in connection with its decision. R. 743.

However, Councilmembers did speak their views after the hearing and prior to their vote. Rather than meaningfully engaging with the information presented in the application, the appeal, and the public comments, Councilmembers' remarks reflected numerous random and irrelevant considerations, including the desire to approve every industrial application that comes before them.[7]

On October 27, 2023, Appellants filed a Petition for Judicial Review with the 23rd Judicial District Court, challenging the Parish's approval of the Koch Project. R. 32-47. The parties briefed the case, and on April 8, 2024, all parties presented oral argument, and the court requested a post-hearing brief from all parties on four issues, R. 858-863,[8] with which all parties complied on May 8, 2024. R. 864-901.

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[7]For example, Councilman Nash stated he will support: "any industry that comes in that's going to provide sustainable income in the St. James Parish in revenues and taxes," and emphasized "[i]f we continue to fight against industry every time industry comes to St. James Parish, then there won't be a St. James Parish." R. 107.

[8]Those questions were: 1) Whose decision should the Court evaluate to determine whether the decision-making body breached the arbitrary and capricious standard; 2) What standard does the Council follow in an appeal of a Commission decision; and 3) What is the legal effect if that standard is not defined in the statute; 4) Who makes the determination as to whether a unique situation exists, and why does the party who makes it have the authority to make that decision?

On June 18, 2024, the district court ruled in favor of the Parish, holding that the Commission and Council "applied the proper standard of consideration to Koch Methanol's requested permit," under the ordinance, R. 29, but not addressing what standard the Council had used in its review of the Commission. R. 26-31.

Petitioners subsequently filed a timely motion for appeal on August 19, 2024, to this Court. R. 907-908.

SUMMARY OF THE ARGUMENT

The Parish's approval of the Koch Methanol land use application was void because the Planning Commission did not apply the ordinance's more stringent Tier 3 review process that is mandated under § 82-25(e) of the land use ordinance for nonallowable uses and because the Parish Council did not apply any standard to the land use application.

The Parish was required to review the project under Tier 3/section (e) because the Land Use Ordinance does not "specifically" list pipelines as "an allowable use" in Wetlands. The district court should have followed the plain language of the ordinance that dictates this review, rather than searching for and presuming a legislative intent that was nowhere in the record. Furthermore, contrary to the district court's opinion, reviewing all projects that will go in the Wetlands under Tier 3/section (e) does not create an absurd result. Rather, by allowing the Parish to skirt section (e) review, the district court removed the need for the Commission and Council to make mandatory findings that a project has compelling benefits and minimal drawbacks before approving that nonconforming use. The Parish has since abandoned the interpretation it initially espoused in this litigation and has

acknowledged in subsequent project reviews that the plain language and purpose of the statute require the stricter level of review for pipeline projects in wetlands.

Further, by neglecting to follow a clear standard—despite the ordinance's requirement to consider and balance environmental impacts and public benefits—the Council's actions were arbitrary, capricious, and procedurally deficient. Judicial deference for land use decisions should not be extended to protect the Parish's choice to ignore the ordinance's plainly-stated mandatory procedures for land use applications. This lack of adherence to any rational standard of review constitutes a failure to provide a fair, reasoned decision-making process for citizens to rely on and violates both the law and constitutional protections.

ARGUMENT

I. Standard of Review

This Court shall apply *de novo* review to the district court's rulings because they present questions of law. *Yolande Schexnayder & Son, Inc. v. Par. of St. James*, 21-416, p. 9 (La. App. 5 Cir. 03/09/22), 337 So.3d 534, 540. Here, the district court improperly deferred to the Parish's suggested interpretation of the ordinance. Louisiana law requires that questions of law, such as the proper interpretation of a statute or ordinance, be reviewed *de novo*. *Id.* While a "parish may have the discretion to approve or disapprove [the subdivision] plan itself," it has "*no discretion* in following the requirements of its own ordinance." *Folsom Rd. Civic Ass'n v. Par. of St. Tammany*, 425 So.2d 1318, 1320 (La. App. 1 Cir. 1983) (emphasis added). What procedures are required by a parish ordinance is a question of law for a reviewing court to answer *de novo* before determining whether those procedures were followed.

II. The plain language of the ordinance and rules of statutory construction require reversal of the district court's ruling.

The dispute in this case centers on the proper interpretation of the Parish's land use ordinance. As in *Yolande Schexnayder & Son, Inc. v. Parish of St. James* —a ruling from this Court interpreting the same land use ordinance—the question here is whether the district court's interpretation of the ordinance aligns with the text's plain meaning or leads to an "absurd result." Here, the question boils down to whether the land use plan requires more stringent review for construction in Wetlands, which in turn rests on the question of whether a pipeline—unique situation or not—is "specifically listed as [an] allowable" use in areas designated as Wetlands. Because pipelines are not specifically listed as allowable in Wetlands, and because the land use plan clearly expresses an intention that wetlands should be protected via its instruction that they "should remain unoccupied" absent unique situations, the district court's ruling was in error and leads to an absurd result—*i.e.*, that wetlands get less protection, instead of more, than other land use categories.

In *Yolande Schexnayder*, this Court held that the trial court's interpretation of the Land Use Plan "[led] to absurd results and [did] not reasonably comport with the Parish's intent set forth in the Land Use Plan." *Id.* at 13. In that case, the trial court had ruled for the petitioners who argued that, under the land use plan, they did not need to seek approval for a nonconforming use of their property. But this Court rejected that holding when it found that the result of the trial court's ruling would be "absurd" because owners seeking to use their property in a manner not in conformity with the land use designation "would be subject to *less governmental review* than a property in use as designated pursuant to the Land Use Plan." *Id.* (emphasis added). The same result would obtain here, as the district court's ruling

would mean that wetlands would receive less governmental review than other land use designations.

Louisiana Civil Code article 9 establishes that when a law is clear and unambiguous, courts must apply the ordinance as written and cannot further interpret the law in search of the legislative body's intent. This Court reiterated and adhered to this principle in *Yolande Schexnayder*.

Despite acknowledging the *Yolande Schexnayder* precedent to the contrary, the district court turned away from the clear text of the ordinance and instead presumed a legislative intent unsupported by any record evidence, and which contradicts the clear purpose of the provision at issue, *i.e.*, to protect wetlands. In doing so, the district court invoked *New Cingular Wireless, PCS, LLC v. City-Parish of East Baton Rouge* for the proposition that a legislative body's interpretation of its legislative zoning ordinance is entitled to great weight. R. 27 (citing *New Cingular Wireless, PCS, LLC v. City-Parish of E. Baton Rouge*, 2021-0292 (La. App. 1 Cir. 12/30/21); 340 So. 3d 1037). At the outset, *New Cingular Wireless* is not applicable to the question before this Court, as *New Cingular Wireless* did not provide guidance as to a question of statutory interpretation.

More fundamentally, the Louisiana Supreme Court has made clear that consideration of a municipality's interpretation is only warranted when 1) the plain text is ambiguous and 2) when the construction of the ordinance proposed by "those charged with the duty of its administrative application" has been *consistent*. *Gautreau v. Bd. of Elec. Examiners of City of Baton Rouge*, 167 So. 2d 425, 433 (La. Ct. App. 1st Cir. 1964) (noting that a "construction *consistently accorded*" an ambiguous statute "by those charged with the duty of its administrative application"

is of "great persuasive (but not necessarily controlling) weight" in the judicial interpretation thereof) (emphasis added).

Here, the ordinance language is not ambiguous. However, even if it were, since the district court's ruling, the Parish's interpretation and application of this ordinance *has changed to align with Petitioners'*. In a July 29, 2024 meeting, the Planning Commission limited its approval of a new pipeline to "those portions of the project *within designated Industrial Use areas*," in accordance with the limits of its authority set out in subsections (f) and (e). July 29, 2024 Minutes, St. James Parish Planning Commission (emphasis added).[9] The Commission added: "For these other segments [the parts not in designated Industrial areas, including in Wetlands], the planning commission only has the authority to recommend action, and the final decision rests with the parish council."[10] And in its evaluation of another proposed pipeline, the Commission also acknowledged that its authority to approve the pipeline is limited to areas where the pipeline is within land designated for Industrial use.[11] When considering the Planning Commission's recommendations on these

[9] *See* Proceedings of the Planning Commission, Parish of St. James, State of Louisiana (July 29, 2024) ("July 29, 2024 Minutes") at 1, available at https://www.stjamesla.com/AgendaCenter/ViewFile/Minutes/_07292024-509. These minutes are not in the record before this Court, but this Court may take judicial notice of publicly available documents. The Louisiana Code of Evidence defines a judicially noticed fact as "one not subject to reasonable dispute" because it is either "(l) [g]enerally known within the territorial jurisdiction of the trial court; or (2) [c]apable of accurate and ready determination by resort to sources whose accuracy cannot reasonably be questioned." La. Code Ev. Art. 20l(B). Because these records are publicly available, they meet the second prong of Art. 201 (B).

[10] July 29, 2024, Minutes at 1.

[11] *See* Proceedings of the Planning Commission, Parish of St. James, State of Louisiana (June 24, 2024), available at https://www.stjamesla.com/AgendaCenter/ViewFile/Minutes/_06242024-505. These minutes are not in the record before this

projects, the Parish Council acted as the final approver, going through the (e) factors to approve a pipeline in wetlands.[12]

The Parish's shift in its interpretation and application of the ordinance undermines any argument for deference to its earlier position. At the time this case was argued before the district court, the Parish advocated for an interpretation inconsistent with the plain text of the ordinance, but it has now adopted the plain-language interpretation Appellants have emphasized here. Deference to the Parish's earlier position is therefore unwarranted. *See Gautreau, supra.* Courts should not uphold an interpretation that the Parish has effectively abandoned, particularly when the ordinance's plain text supports a different, unambiguous reading that aligns with, what is now, the Parish's current position. The Parish's bespoke interpretation of the ordinance in this matter—tailored to this particular decision—distorts the ordinance's plain language and would lead to absurd results in direct contravention of its purpose. If anything, the Parish's actions only reinforce the need to apply the ordinance as written rather than relying on fluctuating and contradictory municipal interpretations.

Court, but this Court may take judicial notice of publicly available documents. *See supra* n. 9.

[12] *See, e.g.,* A Resolution Approving the Application of Occidental Chemical Corporation Under the St. James Parish Land Use Ordinance, With Conditions, Agenda of the St. James Parish Council, August 7, 2024 at PDF p. 51, available at https://www.stjamesla.com/AgendaCenter/ViewFile/Agenda/_08072024-512; *see also* Minutes of the August 7, 2024 meeting of the St. James Parish Council (approving resolution at PDF p. 7), available at https://www.stjamesla.com/AgendaCenter/ViewFile/Minutes/_08072024-512. These minutes are not in the record before this Court, but this Court may take judicial notice of publicly available documents. *See supra* n. 9.

III. The Planning Commission violated the ordinance when it approved Koch's pipeline as an allowable use in a Wetland area.

The Planning Commission exceeded its authority under the land use ordinance when it approved Koch Methanol's land use application under Tier 2/ section (f), as though it was a use "specifically listed as allowable," and therefore without addressing the affirmative findings mandated by the ordinance and without referring it to the Council for final approval, as § 82-25(e) of the ordinance requires. This error circumvented critical procedural and substantive protections embedded in the ordinance intended for the benefit and protection of the Appellants.

The Commission's failure to follow the clear requirements of the ordinance renders its decision null and void. *Folsom Rd. Civic Ass'n* , 425 So.2d at 1320 (while a "parish may have the discretion to approve or disapprove the plan itself," it has "no discretion in following the requirements of its own ordinance[.]"); *Tardo v. Lafourche Par. Council*, 476 So.2d 997, 1001 (La. Ct. App. 1 Cir. 1985) (budget amendment invalid because it violated the procedural requirements of the parish's home rule charter mandating approval by parish president).

The Commission's decision also ignored the plain language of the ordinance. "When a law is clear and unambiguous and its application does not lead to absurd consequences, the law shall be applied as written and no further interpretation may be made in search of the intent of the Legislature, nor shall the letter of the law be disregarded under the pretext of pursuing its spirit." La. Civ. Code Ann. art. 9. "A statute's meaning and intent is determined after consideration of the *entire statute and all other statutes* on the same subject matter, and a construction should be placed on the provision in question which is consistent with the express terms of the statute and with the obvious intent of the Legislature in its enactment of the statute."

ABL Mgmt., Inc. v. Bd. of Sup'rs of S. Univ., 2000-0798, p. 6 (La. 11/28/00), 773 So. 2d 131, 135 (emphasis added).

The district court then endorsed these errors, finding ambiguity in the clear language in subsection (c) which instructs that wetlands "should remain unoccupied," except for unique situations, and subsection (e) requiring heightened review for proposed uses that are not "specifically listed as allowable." R. 28. The court further erred by finding that application of the plain language of the ordinance would lead to an absurd result. R. 28. This interpretation not only disregards the plain language of the ordinance, but also its stated purpose, and produces actual absurd results by granting less protection to wetlands.

A. Section 82-25(e) of the ordinance provides clear instructions that if the ordinance does not specifically list a use as allowable, the Parish must adhere to the approval process outlined in Tier 3/section (e).

In reviewing Koch's application—and the pipeline component of its project in particular—the Commission was required to follow § 82-25(e) of the ordinance before it could approve the Project and make affirmative findings that the Project would have compelling public benefits, would be compatible with surrounding uses, and that adverse impacts of the Project would be inconsequential. Instead, the Commission illegally followed subsection (f) of the ordinance which applies to uses proposed for an area in which they are listed as allowable. Subsection (e) states that:

> Uses not specifically listed as allowable in a use category in subsection (c) of this section are prohibited unless the planning commission considers the use in accordance with subsections (g), (h) and (i), and the parish council approves the use. Any such recommendation or approval shall be made on a case-by-case basis. *The planning commission shall not recommend a use for approval and the parish council shall not approve a use, under this subsection unless it makes*

> *affirmative findings that there is a compelling public benefit, that the use is compatible with surrounding uses and adverse impacts of the use are inconsequential*; or that approval is required as a matter of constitutional imperative or other vested legal right superior to this section.

Ord. Art. II, § 82-25(e) (emphasis added). Thus, unless the type of project seeking approval is specifically listed in the land use plan as an allowable use under the appropriate category, the Commission cannot approve an application. Instead, it must make a recommendation to the Council, which then makes the ultimate decision. Both the Commission recommendation and the Council decision must be based on the factors enumerated in section (g)-(i), and neither body can approve a project unless the project satisfies additional hurdles that must be memorialized as affirmative findings concerning the public benefits the project provides, the compatibility with surrounding uses, and the adverse impacts the project causes.

The Commission was required to follow this procedure for Koch Methanol's application, and the district court erred in allowing the Commission to circumvent this procedure. The language of the Ordinance is clear, not ambiguous. Not only does subsection (c) not list "petrochemical operations" or "pipelines" as allowable uses in the Wetlands category, it does not list *any* allowable use. Rather, this provision urges that "wetland areas should remain unoccupied except for unique situations requiring a location in the water…." Furthermore, the ordinance states that the "Allowable Uses" column for the Wetlands category is "Shown for information only."

> Wetlands: Shown for information only; wetland areas should remain unoccupied except for unique situations requiring a location in the water, subject to any permits required under article V, chapter 18.

In contrast, the "Industrial" land use category provides a list of allowable uses, including "Petrochemical operations" and "pipelines."

> Industrial: Petrochemical operations; manufacturing; tank farms; material processing and production; grain elevators, railroad yard facilities; raw, spent, and finished material storage; warehousing or open-yard equipment; material handling facilities (such as conveyors, pipelines, and trans-shipment facilities); and associated support facilities and offices.

Ord. Art. II, § 82-25(c) (emphasis added). Other land use categories contain a myriad of specifically listed uses such as "grain elevators" in the Industrial category, and "restaurants" in the Commercial category. Indeed, the fact that "pipelines" are specifically listed as allowable uses in the "Industrial" land use category serves as yet another clear direction that pipelines are *not* specifically listed as allowable uses in a Wetlands area, regardless of whether they can nevertheless be approved as a "unique situation."

Therefore, the Commission was required to consider the Project, and its pipeline construction in wetlands, to be a use not specifically listed as allowable. This would dictate application of the Tier 3/section (e) procedures if the Parish wanted to consider whether it could approve the Project anyway, as a "unique situation requiring a location in water." The Commission would then make (or be unable to make) the necessary affirmative findings, and recommend an action to the Council. Instead, the Commission unilaterally approved Koch's application, ignoring its procedural and substantive obligations under section (e).

The Commission attempted to justify its action by claiming that the Koch pipeline in wetlands is "a unique situation requiring a location in a Wetlands area," and that such unique situations are allowable uses in Wetlands. R. 248. But,

even if the Commission considers the pipeline approvable as a unique situation, that determination does not make the pipeline a specifically listed allowable use. Appellants acknowledge that the ordinance permits the Parish to approve some nonallowable uses in Wetlands, those that can meet the stringent Tier 3/section (e) criteria. But that does not make those projects specifically listed as allowable.

To find otherwise requires the Court to ignore not one, but two clear provisions in the ordinance. First, the Court would have to ignore that the ordinance *prohibits* "[u]ses not specifically listed" as allowable in a use category and dictates special procedures for approval of these uses. Ord. Art. II, § 82-25(e). The Parish's interpretation that pipelines become allowable uses upon a finding that they present a unique situation requires ignoring that pipelines are not "specifically listed" as allowable in Wetlands. Second, the Parish's interpretation requires ignoring that the Wetlands allowable use category is "[s]hown for information only" and that they "should remain unoccupied." *Id.* at § 82-25(c). The Parish's argument would render this language superfluous, a result prohibited by the rules of statutory interpretation. *Langlois v. E. Baton Rouge Par. Sch. Bd.*, 1999-2007, p. 5 (La. 5/16/00), 761 So.2d 504, 507 (Courts are "bound to give effect to all parts of a statute and cannot give a statute an interpretation that makes any part superfluous or meaningless, if that result can be avoided."). Therefore, the district court erred in accepting the Parish's interpretation of the Ordinance that renders meaningless the term "specifically listed" in § 82-25(e) and the term "Shown for information only" in § 82-25(c).

In its briefing to the district court, the Parish urged that such clear directions to keep wetlands unoccupied are aspirational, rather than mandatory. R. 816. But this both ignores other plain language in the ordinance and misinterprets Appellants'

argument. The ordinance explicitly prohibits nonallowable uses unless the proper procedures are adhered to: "Uses not specifically listed as allowable in a use category . . . are prohibited . . . ." Ord. Art. II, § 82-25(e). Further, Appellants do not claim that no new structures can ever be built in a Wetlands area. The "unique situation" provision contemplates some exceptional scenarios. But the Commission and Council must approve these types of projects pursuant to section (e). Namely, the Commission must recommend action to the Council, the Council must approve or deny the application on its own, and both bodies must make affirmative findings. By making these findings, the Parish will determine whether the project provides a compelling public benefit, whether the use is compatible with surrounding uses, and whether adverse impacts of the use are inconsequential. Ord. Art. II, § 82-25(e). This process ensures that the exceptional circumstance of a unique situation—like any other nonallowable use—does not swallow the prohibition. While an applicant may be able to demonstrate a "unique situation requiring a location in water," under subsection (e) the Parish Council must then decide whether the proposed benefits of a particular project outweigh the harms to Parish residents, particularly in sensitive areas like wetlands.

B. The district court erred in its search for legislative intent and in finding that applying the ordinance as written would achieve an absurd result.

Given that the language of the ordinance is clear, and that applying that clear language requires that Koch's Project be reviewed under section (e), the district court erred by impermissibly looking for legislative intent and not applying what it referred to as "a literal interpretation." R. 28. Louisiana law provides: "The text

of a law is the best evidence of legislative intent." La. R.S.§ 24:177(B)(1).[13] Both findings led the court to an impermissible and faulty analysis of the Parish's intent in enacting sections (c) and (e) of the ordinance. "When the wording of a Section is clear and free of ambiguity, the letter of it shall not be disregarded under the pretext of pursuing its spirit." La. R.S. § 1:4.; *see also* La. Civ. Code. art. 9 ("When a law is clear and unambiguous and its application does not lead to absurd consequences, the law shall be applied as written and no further interpretation may be made in search of the intent of the legislature"); *Welch v. United Med. Healthwest-New Orleans, LLC*, 21-684, p. 7 (La. App. 5 Cir. 8/24/22), 348 So.3d 216, 222 ("[W]e cannot look to legislative intent . . . where the law is clear and unambiguous."). Statutory interpretation begins with the language of the statute itself. *David v. Our Lady of the Lake Hosp., Inc.*, 02-2675, p. 11 (La. 7/2/03), 849 So.2d 38, 46.

Specifically, the district court stated it does not believe that classifying all projects that will go in the wetlands as nonallowable uses "would have been the intent of the Council when enacting this ordinance because such a requirement would be overly exhaustive and more times than not unnecessary." R. 28. Even if the language were ambiguous, which Appellants deny, no valid basis appears in the record for what the district court called "the intent of the Council." R. 28. The record is entirely devoid of any facts or evidence to suggest that the approval process outlined in section (e) would be "overly exhaustive" or "unnecessary" for development in wetlands. Indeed, concepts of textual interpretation point to

[13]This Court has found that codal provisions dictating statutory interpretation principles apply equally to interpretation of ordinances. *Yolande Schexnayder*, 21-416 at p. 9; 337 So. 3d at 540 (finding that "[t]he statutory and jurisprudential rules for statutory construction and interpretation apply equally well to ordinances, rules, and regulations.").

"the occasion and necessity for the law," as an important factor beyond the plain language. La. R.S. § 24:177(B)(2)(a). The Parish's choice of the language "shown for information only" and "wetland areas should remain unoccupied" in subsection (c) demonstrates that one of the ordinance's purposes was to increase protections for the wetland areas.

Additionally, the law provides the proper way for a body to establish legislative intent—a process that is not reflected anywhere in this record. La. R.S. § 24:177(B)(2)(b) provides: "The legislature may express the intended meaning of a law in a duly adopted *concurrent resolution*, by the same vote and . . . according to the same procedures and formalities required for enactment of that law." *Id.* (emphasis added). Given that there is no evidence in the record that St. James Parish adopted a resolution concurrently with the adoption of the land use plan explaining that "unique situations requiring a location in water" are considered allowable uses in wetlands entitling applicants to a more lenient review, no valid legislative intent exists for the court to rely on.[14]

Thus, the district court should have applied de novo review to the Council's interpretation of their ordinance and given it no deference. *Yolande Schexnayder & Son, Inc. v. Par. of St. James*, 21-416, p. 9 (La. App. 5 Cir. 3/9/22), 337 So.3d 534, 540 ("The proper interpretation of the language of a statute or Parish ordinance is a question of law requiring *de novo* review").

[14]The Planning Commission's resolution approving the Koch application, and the accompanying minutes, do state that the Parish's counsel advised the Commission that the unique situation circumstances make the Koch pipeline an allowable use. R. 247-248. The district court referenced this language. R. 28. However, this interpretation by Parish's counsel, and the Commission's adoption of that interpretation, at the time of approval of the Koch application is not legislative intent. *See* La. R.S. § 24:177(B)(2)(b).

The court states in its opinion that "courts will not and cannot substitute their judgment for that of legislative authority." R. 27. But the court does just that, even though neither the ordinance nor any other form of extra textual evidence provides any indication that this pipeline—or any pipeline—falls under the subsection (f) standard of approval. The Parish's claims that it intended subsection (c) to include "unique situation(s)" as specifically listed allowable use proves to be nothing more than a post hoc rationalization.

C. The requirement that all proposed projects in Wetlands undergo the procedures mandated in § 82-25(e) does not lead to an absurd result.

The district court's stated grounds for not applying the plain language of the ordinance were that if it adopted Appellants' interpretation and every project in the wetlands would have to undergo section (e) approval, "the potential for an absurd result would exist." R. 28.

No such absurd result exists. Reviewing the pipeline expansion under Tier 3/section (e) does not create an inordinate burden on the Commission or the Council, nor does it prevent the Parish from approving a particular use in Wetlands. Instead, it adds additional layers of protection for an area that the ordinance clearly sought to protect. Heightened scrutiny for development in wetlands is consistent with the policy and procedures set out in the Parish's own code of ordinances *See, e.g.,* Ord. Art. II § 18-163 *et seq.*, as well as with other actions that federal and state governments have taken to preserve these areas, *See, e.g.* 40 C.F.R. Part 230 (detailing guidelines under 404(b) of the Clean Water Act); La. Admin. Code tit. 43, pt. I, § 723 (Louisiana regulations for Coastal Use Permits). *See* La. Civ. Code art. 13 ("Laws on the same subject matter must be interpreted in reference to each other.").

Indeed, it would be more absurd to find that an industrial project like a pipeline could go in wetlands without the need for the Parish to first affirmatively find that the use is compatible with surrounding uses and that adverse impacts of the use are inconsequential. Ord. Art. II, § 82-25(e).[15] Yet that is the interpretation that the Parish proposed and the district court adopted here. But requiring a finding that a nonallowable use would result in a "compelling public benefit" further demonstrates the Parish's intent that the positives of the project must outweigh the negatives of disturbing an already fragile ecosystem.

The district court's interpretation that a "unique situation requiring a location in water" constitutes a use "specifically listed as allowable" leads to its own absurd results. For instance, a company wanting to construct a pipeline in a Commercial land use area would be forced to face Tier 3/section (e) review because the ordinance does not specifically list pipelines as an allowable Commercial land use. But a pipeline project in sensitive wetlands would bypass the stricter subsection (e) review if classified as a "unique situation." A pipeline project in Wetlands would therefore receive less scrutiny than the same project in the Commercial land use category. With the exception of "Water," no other land use category mentions the carve-out for unique situations. Therefore, the Commission is attempting to reinterpret what is supposed to be a limited carve-out for unique situations as encompassing any and all uses (despite the fact that they are not "specifically listed" as allowable for Water and Wetlands) to provide for *less* review. This reinterpretation creates a broad and amorphous category of allowable uses that exempts such projects from more stringent review only in Wetlands and Water. Such

[15] It is not inconsequential that such findings, for a pipeline running through wetlands, are not a foregone conclusion.

a reading ignores clear direction from the ordinance that "wetlands areas should remain unoccupied." Even if this phrase were "aspirational"—which it is patently not— the district court's interpretation of the ordinance would result in industrial projects in the wetlands receiving a lesser form of review than projects in other non-industrial areas. This disregards well-established policy that wetlands should have more protection than other areas, not less. Moreover, as noted above, the Parish has since abandoned this interpretation.

D. The Planning Commission's erroneous treatment of the Koch Methanol pipeline as an allowable use in a Wetlands area resulted in neither body making mandatory affirmative findings, rendering the decision void.

The Planning Commission and Council violated § 82-25(e) of the Land Use Ordinance when they approved the Koch Methanol project without either body making any of the affirmative findings required by the ordinance. Louisiana courts have found that where a Parish Council fails to properly make and document required findings in support of a permitting decision, the underlying permit decision must be revoked. *Oakville Cmty. Action Grp. v. Plaquemines Par. Council*, 2008-1286, p. 8 (La. App. 4 Cir. 2/18/09), 7 So.3d 25, 29-30. For uses not specifically listed as allowable, section (e) states that "the parish council shall not approve a use under this subsection unless it makes affirmative findings that there is a *compelling* public benefit [and] that the use is compatible with surrounding uses and adverse impacts of the use are *inconsequential* . . . ." Ord. Art. II § 82-25(e) (emphasis added).

Because the Parish did not apply section (e), the correct approval process for this project, neither body made these critical affirmative findings. This renders the Commission's approval, as well as the Council's, void.

This error is consequential. Even though the Commission applied the section (h) factors in its approval of the project, those components are not as stringent as the mandatory findings of section (e). Section (e) sets a higher burden for approval than the considerations in section (h), which is exactly what would be expected when Industrial infrastructure like a pipeline is going into a sensitive area like the Wetlands with which it does not conform. Whereas section (h) requires weighing whether the public benefits of the project are commensurate with the impacts, section (e) states that the Parish must find that the project has a "compelling" public benefit and a finding that "adverse impacts of the use are inconsequential" before the Parish can approve the use. Ord. Art. II § 82-25(e). This would have been no small hurdle in the case of Koch Methanol's project, where the expansion would significantly increase emissions of pollutants that the Environmental Protection Agency (EPA) has singled out for federal regulation due to their proven connection to severe illnesses. R. 255. Finally, section (e) also requires a finding with no counterpart in the (h) factors: "that the use is compatible with surrounding uses." *Id.* Once again, this would be a significant hurdle for Koch Methanol, given that an ethane pipeline with its potential for ruptures is hardly compatible with sensitive wetland areas. R. 583.

These standards differ significantly and purposefully, and the use of one section versus the other could impact whether or not the Parish approves a project, or what findings are required to support an approval and withstand an arbitrary and capricious challenge. These mandatory findings in section (e) are not perfunctory. They serve an important purpose: ensuring that projects in sensitive and protected areas contain sufficient benefits and minimal harm for the community. Moreover,

they force project applicants to support their claims with evidence that their projects will strongly benefit the Parish and all of its residents. This ensures transparency of the approval process and accountability for officials who decide that a certain project will be in the best interest of their constituents.

IV. The St. James Parish Council's failure to apply a standard of review to Koch's land use application invalidates its approval of the Project.

The Parish Council failed to apply any discernible legal standard to its review of the Koch project on appeal, rendering its decision unconstitutional. Section 82-25(h) of the Land Use Ordinance outlines specific factors that must guide the Parish's evaluation of such projects, including the consideration of environmental impacts and public benefits, and Appellants' position is that these are the standards that the Ordinance required the Council to apply. Ord. Art. II § 82-25(h). However, not only did the Council neglect these criteria, it applied no criteria at all. The Council's failure to apply any standard to its decision renders its decision arbitrary and capricious, sidestepping the constitutional requirement for a fair and reasoned decision-making process.

A. The Parish Council neglected to apply a standard to its decision to approve the Koch project, rendering its decision unconstitutional and arbitrary and capricious.

Louisiana courts have consistently held that ordinances governing permits must include clear and definite standards to ensure uniform application, prevent arbitrary decision-making, and uphold constitutional due process protections.

The Louisiana Supreme Court has addressed this issue in the context of zoning ordinances:

> A zoning ordinance which contains no standard for the uniform exercise of the power to grant or deny applications for permits is unconstitutional. To be constitutional, a zoning ordinance must be

> sufficiently definite to notify citizens of their rights pursuant to the ordinance and must establish sufficiently definite and adequate standards to govern officials with respect to the uniform treatment of applications for permits under the ordinance.

Summerell v. Phillips, 282 So.2d 450, 453 (La. 1973) (citing United States Constitution, Amendment V and Amendment XIV; Louisiana Constitution of 1921, Art. 1, § 2); *Gaudet v. Economical Super Market, Inc.*, 112 So.2d 720 (1959) (holding that a zoning ordinance is invalid if it lacks clear and adequate guidelines for granting variances, exceptions, or permits, and to be valid, must be so defined and limited that both citizens and the zoning board may know with certainty their rights, privileges and powers under the ordinance); *McCauley v. Albert E. Briede & Son*, 90 So.2d 78 (La. 1956) ("To allow the granting or refusal of special permits by officials without any standard to guide them denies equal protection of the law and is invalid"); *State ex rel. Dickson v. Harrison*, 108 So. 421 (La. 1926) (the ordinance at issue "prescribe[d] no uniform rule of action, applicable to all similarly situated, under which the council [was] to act in granting or withholding permits . . . because of this objectionable feature, [the ordinance was] unconstitutional").

Here, the Council made its decision unguided by any standard. This is corroborated by the Parish's position before the district court and evidenced in the transcript of the Council's appeal hearing. Before the district court, the Parish denied that the Council had to make the affirmative findings in subsection (e), R. 147, denied that the Council had to consider the (h) factors on appeal, R. 997-998, and otherwise offered no standard that applies to the Council considering the matter on appeal. R. 998-1006.[16]

[16] A review of this portion of Parish counsel's argument is enlightening in this regard, as counsel is all over the place when asked by the court what the standard

Notably, at oral argument the district court recognized the problem of what standard the Parish Council applies on appeal, even acknowledging that issue as the "ultimate determination [or at least one determination] that this Court is going to have to make." R. 1000-1001 (discussing question of "Under what standard did the Parish Council have to review the decision of the Planning Commission"?). However, the court never decided that key question. R. 26-30.

Lacking the guidance an objective standard would have provided, the record of the appeal hearing reflects that Councilmembers instead based their decision on personal feeling, experience, and irrelevant facts. R. 102-115.[17] At no time during their deliberation did the Council articulate a standard, before voting unanimously on a motion to reject the appeal. R. 115-116.

This form of standardless review violates the due process rights of the Appellants by failing to provide a fair, standardized review process as required under both U.S. and Louisiana law. The requirement of an explicitly applied standard ensures uniform application of the law and protects citizens' rights by preventing arbitrary decision-making, and it is for exactly this reason that courts insist local bodies be guided by standards. *See, e.g., McCauley*, 90 So.2d at 82 (La. 1956) ("[I]t is a fundamental rule, fully applicable to zoning ordinances,

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is. R. 998 ("An easy answer to that does not exist"); R. 999 ("It's a grey standard"); R. 1002 ("[I]t is an arbitrary and capricious standard," but "they can elect to do de novo review if they want to and weigh the facts.").

[17]Indeed, some Councilmembers eschewed their responsibilities to consider health, safety, and welfare entirely, placing the onus instead on residents: "Why don't y'all buy the property so that [industry] can't locate"? R. 739. This attitude was repeated in the Parish's brief before the district court, wherein it stated that if the Appellants wanted their viewpoint represented, their recourse is to "get [themselves] appointed to the planning commission" or be elected to the Council. R. 824.

that an ordinance must establish a standard to operate uniformly and govern its administration and enforcement in all cases"). Further, ordinances that are devoid of a standard upon which an elected body exercises its police power are unconstitutional. *See Morton v. Jefferson Par. Council*, 419 So.2d 431, 434 (La. 1982) ("[A] zoning ordinance which contains no standard for the uniform exercise of the power to grant or deny applications for permits is unconstitutional").

In failing to apply a standard to its decision on the Koch application, the Council failed to establish standards "sufficiently definite to notify citizens of their rights pursuant to the ordinance." *Summerell*, 282 So.2d at 453. The Council's decision was arbitrary and capricious, violating constitutional protections.

B. The applicable standard for the Council's decision is the (h) factors.

Though the Council did not apply a standard, the land use plan provides and requires a standard for the Council to apply: the standards articulated in § 82-25(h). For this reason, Appellants are not arguing the ordinance is unconstitutional for lack of a standard that guides the Council in land use appeals, as the Parish misstated before the district court. Rather, Appellants' position is that the proper interpretation of the ordinance, both based on its plain language and to ensure it meets constitutional standards, is that the Council must consider the (h) factors on appeal.[18]

[18] Appellants do not argue that the Council necessarily must put its consideration of the (h) factors on the record the way that the Commission did, though that would be the best practice to demonstrate that it followed its own procedures. Here, however, there is a record reflecting what the basis of the Council's decision was, and it was factors wholly outside of the (h) factors and outside of health, safety and welfare considerations. Much of it constituted whim and caprice. Additionally, as stated previously, the Parish's position in court was that the Council did not need to consider the (h) factors.

The (h) factors require the analysis of five factors: 1) the physical impacts of a proposed project on the air, water and land; 2) the environmental impacts of a proposed project on the air, water, and land; 3) the public benefits of a proposed project; 4) whether those benefits are at least commensurate with the impacts; and 5) whether the environmental impacts may impair the ability of the parish to attract other beneficial development. Ord. Art. II, § 82-25(h). Of these, the record reflects the Council only considered public benefits. R. 730-743. Most notably absent is consideration of whether the benefits of the Project are at least commensurate with the impacts.

Both the language of the ordinance and the facts here dictate a conclusion that the Council was required to consider the (h) factors when deciding Koch's application on appeal. First, as noted in Argument I, the Tier 3/section (e) procedure requires the Council to apply the (h) factors as its standard in reviewing the Koch application because it is the Council who makes the decision in the first instance. According to the third tier of review enumerated in § 82-25(e), the Commission's decision was at most a recommendation for Council consideration.

However, even if the project falls under Tier 2/section (f), as the Parish argues, the (h) factors must still be considered by the Council. The Parish admits that the (h) factors must be considered by the Planning Commission when a project falls under (f). R. 814, 823. But the plain language of (f) hands the responsibility for approval to "the parish council on appeal." Ord. Art. II, § 82-25(f). Thus, here, the Council was obligated to consider the (h) factors. To conclude that the Council had no such duty would render "or by the parish council on appeal" meaningless—a conclusion that is contrary to statutory construction under Louisiana law. *Louisiana*

Workers' Comp. Corp. v. Landry, 2011-1973, p. 8 (La. App. 1 Cir. 5/2/12), 92 So.3d 1018, 1023 (courts shall "not give a statute an interpretation that makes any part superfluous or meaningless, if that result can be avoided").

Further, given the amount of new information from both parties in the appeal to the Council that was not presented before the Commission, independent consideration of the (h) factors—rather than an unstated, post hoc reliance on the Planning Commission decision—was imperative to the Council's ability to fairly decide Appellants' appeal. Koch submitted a new application in the time between the Commission's initial findings and the Council's review of Petitioners' appeal. R. 366-523 (Sept. 22, 2023, application). That supplemental application contained substantial new information material to whether the Project met the required factors under § 82-25(h).[19] Appellants, similarly, presented much new information that the Commission did not have; indeed, Appellants' entire appeal was new information.[20] To decide on these new issues, the standard must be (h)—the only ordinance-contemplated standard—regardless of whether the Council reviewed the project under (e) or (f).

[19]For example, Koch added missing application information and included its entire Environmental Assessment Statement submitted to DEQ in support of its air permit. R. 366-367, 378-383, 412-546.

[20]This information included evidence of disproportionate impact substantiated by EJScreen evidence, R. 258; evidence that Koch conceived of this as an "automation" project, which casts doubt on jobs promises, R. 547-549; evidence that approval of this project would put the Parish close to "non-attainment" status under the 1-hour NAAQS for NO2, R.549-50; evidence of the toxicity of certain heavy metals newly included in the permit R. 254-55; evidence of the Facility's history of violations of its air permit. R. 256-57; 548; and the lack of emergency evacuation routes in the event of an accident. R. 258-59.

C. The Council did not apply the (h) factors, and by neglecting to do so, the Parish effectively violated its own ordinance.

The Council's failure to apply the mandatory (h) factors is a clear procedural violation that invalidates its denial of Appellants' appeal and exemplifies arbitrary and capricious decision-making contrary to the requirements of the ordinance. The record shows that the Council did not follow its own procedures (*i.e.*, applying the (h) factors mandated by the ordinance). Failure to follow such procedures is arbitrary and capricious under the law and is not afforded deference by courts. *Kaltenbaugh v. Bd. of Supervisors*, 2018-1085, p. 18 (La. App. 4 Cir. 10/23/19), 282 So.3d 1133, 1145 (holding that where the Southern University of New Orleans did not follow its own binding procedures, its decision was arbitrary and capricious, and not entitled to deference).

Before the district court, the Parish essentially acknowledged that the Council did not apply the (h) factors. It argued that only the Commission had to apply the (h) factors, R. 997-998, and the Council on appeal could, or it could not. R. 975-76. Either is permissible according to the Parish. But the record contains no indication that the Council reviewed the Commission's decision, under any standard.

Because the Council *must* apply the (h) factors on appeal, this admission establishes a clear failure to follow a mandatory procedure. Such a failure to follow proper, required procedure renders the Parish's action unlawful and *ultra vires*. *Oakville Cmty. Action Grp.*, 7 So. 3d at 29; *Folsom Rd. Civic Ass'n*, 425 So.2d at 1320. Such a failure is also the very definition of arbitrary and capricious. *See Kaltenbaugh*, 291 So.3d at 1142.

CONCLUSION

For the foregoing reasons, Appellants ask this Court to reverse the decision of the district court, vacate the Parish approval of the Project, and remand to the Parish for proceedings consistent with the Court's opinion.

16th day of December 2024

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CERTIFICATE OF SERVICE

I certify that on 16th day of December, 2024 a copy of the foregoing was served on all counsel of record and on each unrepresented party by email, in accordance with La. Code Civ. Proc. art. 1313, as follows:

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